

24STCV17620 24STCV17620

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-07-30

Motion: PLAINTIFF'S MOTION FOR ATTORNEY'S FEES AND COSTS

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Case Number: 24STCV17620 Hearing Date: July 30, 2026 Dept: 733

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES

LILIBETH

FULLIDO,

Plaintiff,

vs.

BMW OF

NORTH AMERICA, LLC, a Delaware Limited Liability Company; and DOES 1 to 50,
inclusive,

Defendants.

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CASE NO.: 24STCV17620

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION
FOR ATTORNEY'S FEES AND COSTS

Dept. 733

8:30 a.m.

July 30, 2026

I.

INTRODUCTION

This
is a Song-Beverly action.

On

July 16, 2024, Plaintiff Lilibeth Fullido ("Plaintiff") filed a complaint
against Defendant BMW of North America, LLC ("Defendant") alleging causes of
action for (1) Breach of Implied Warranty of Merchantability under the
Song-Beverly Warranty Act, and (2) Breach of Express Warranty Obligations under
the Song-Beverly Warranty Act.

On

May 8, 2026, Plaintiff filed the instant amended motion for attorney's fees and

costs.

On

July 17, 2026, Defendant filed an opposition.

On

July 20, 2026, Plaintiff filed a reply.

II.

LEGAL STANDARD

If the

buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code, §1794, subd. (d).)

The prevailing party has the

burden of showing that the requested attorney fees are reasonable. (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817-818 (Robertson).) The party seeking attorney fees "is not necessarily entitled to compensation for the value of attorney services according to [his] own notion or to the full extent claimed by [him]." (Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816, brackets in original and internal citations omitted.) "A trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended." [Citation.]" (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 38.)

The lodestar approach is the

prevailing method for calculating attorney fees under Song-Beverly Act claims. (Robertson, supra, 144 Cal.App.4th at pp. 818-819.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the

amount requested is based upon unnecessary or duplicative work. [Citation.]” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.) “The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]” (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436–437.)

III.

DISCUSSION

Plaintiff is seeking attorneys' fees in the amount of \$54,425.00, costs in the amount of \$1,547.70, and a lodestar multiplier of 1.1 in the amount of \$5,442.50, for a total award of \$61,415.20.

A. Prevailing

Party

To be a prevailing buyer in a lemon law case, there are two approaches: (1) the buyer achieves a net monetary recovery vis-à-vis Civil Code section 1032, subdivision (a)(4); or (2) the buyer achieves his or her litigation objectives. (Duff v. Jaguar Land Rover N. Am., LLC (2022) 74 Cal.App.5th 491, 502-503.)

Here, Defendant does not dispute that Plaintiff is the prevailing buyer given that Defendant made a post-litigation section 998 offer, which Plaintiff ultimately accepted. (Kohen Decl., ¶ 3, Ex. 3.)

B. Reasonableness

of Hourly Rates

“In determining hourly rates, the court must look to the “prevailing market rates in the relevant community.” (Bell v. Clackamas County (9th Cir.2003) 341 F.3d 858, 868.) The rates of comparable attorneys in the forum district are usually used. (See Gates v. Deukmejian (9th Cir.1992) 987 F.2d 1392, 1405.) In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

Here, Plaintiff is requesting \$575.00/hour for Mr. Isaac Kohen (managing attorney) and \$375.00/hour for Tamara Artolozaga.

The Court the requested hourly rate for Mr. Kohen be excessive, considering both counsel's level of experience with lemon law cases and the Court's experience with hourly rates of other plaintiffs' attorneys in the lemon law field. (See *Mountjoy v. Bank of America, N.A.* (2016) 245 Cal.App.4th 266, 272 ["[A] reasonable hourly rate is the product of a multiplicity of factors the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case."]; 569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc., supra, 6 Cal.App.5th at pp. 436–437 ["The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]."].) The Court decreases Mr. Kohen's rate to \$500.00.

Furthermore, the Laffey Matrix is not sufficient to justify the hourly rates sought, as that does not address rates in the Los Angeles area. "Just because the Laffey matrix has been accepted in the District of Columbia does not mean that it is a sound basis for determining rates elsewhere, let alone in a legal market 3,000 miles away." (*Prison Legal News v. Schwarzenegger* (9th Cir. 2010) 608 F.3d 446, 454.)

However, the Court finds that Ms. Artolozaga to be sufficiently established and does not adjust her rate.

C.

Reasonableness of Billed Hours

The party seeking fees and costs bears the burden to show "the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104.) Counsel still has the burden to demonstrate the reasonableness of charges. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247), but a verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred." (*Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682). It is then "the burden of the challenging party to point to the specific items challenged, with a sufficient argument and

citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564; Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 624 [“However, where the items are properly objected to, they are put in issue, and the burden of proof is upon the party claiming them as costs.”].)

Given that Plaintiff's

counsel submitted an itemized fee bill (Kohen Decl., Ex. 1), the burden shifts to Defendant to illustrate whether specific items were unreasonably incurred. (Lunada Biomedical v. Nunez (2014) 240 Cal.App.4th 459, 488 [“In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.”].)

1.

Block Billing

Defendant objects to certain entries on the ground that they impermissibly blocked billed. Specifically, Defendant objects to the entries dated May 26, 2024; June 10, 2024; July 19,

2024;

July 25, 2024; August 16, 2024; August 19, 2024; November 12, 2024; November 26, 2024; February 7, 2025; March 14, 2025; April 15, 2025; July 17, 2025;

August 1, 2025; August 6, 2025; August 22, 2025; and September 15, 2025. Defendant contends that “Plaintiff billed for separate tasks. Given

Plaintiff's use of block billing in this entry, it is impossible to discern how much time was spent on each task.” However, the Court, in reviewing the challenged entries, does not find that the tasks delineated in these entries obscure the nature of some of the work claimed. Each entry describes discrete and detailed work performed. Also, general arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association (2008) 163 Cal.App.4th 550, 564.) Thus, the Court will not reduce the hours billed in this regard.

The Court

notes that Defendant only disputes the above entries.

Thus, the

Court will not reduce the number of hours billed. Considering the Court's reduction of Mr. Kohen's hourly rate, the Court awards Plaintiff \$49,062.50 in attorney's fees.

D.

Lodestar Multiplier

"The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased. Such an adjustment is commonly referred to as a 'fee enhancement' or 'multiplier.' [Citation.] The trial court is neither foreclosed from, nor required to, award a multiplier." (Mikhaeilpoor, *supra*, 48 Cal.App.5th at p. 247-48; see *Montgomery v. Bio-Med Specialties, Inc.* (1986) 183 Cal.App.3d 1292, 1297 ["That figure may then be increased or reduced by the application of a multiplier after the court has taken into consideration other factors concerning the lawsuit" (*italics added*); see also *Rey v. Madera Unified School Dist.* (2012) 203 Cal.App.4th 1223, 1242, 138 Cal.Rptr.3d 192 ["the trial court is not required to include a fee enhancement for exceptional skill, novelty of the questions involved, or other factors. Rather, applying a multiplier is discretionary." (*italics omitted*)].) The Supreme Court has "set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: '(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.' " (*Press v. Lucky Store, Inc.*, (1983) 34 Cal.3d 311, 322.)

Plaintiffs assert that a 1.1 lodestar multiplier is warranted given that Plaintiff's counsel achieved as successful result while taking the case on a contingency basis.

The Court finds that a lodestar multiplier should not be issued. Given the routine work done in this case, the lack of any novelty, and simplicity of the issues presented, a multiplier is not appropriate. Any contingency risk factor is already accounted for in the hourly rates. (*Ketchum, supra*, 24 Cal.4th at p. 1139 ["[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable

skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.”].) The Court does not find that Plaintiff sufficiently demonstrated that the quality of counsel’s representation “far exceeds” the quality of representation of attorneys with comparable skill and experience.

Thus, the Court declines
Plaintiff’s request for a multiplier.

E.
Costs

To obtain a costs award, a party must serve and file a memorandum of costs. (Cal. Rules of Court Rule 3.1700(a).) “If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].” [Citation.]” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.) The Court therefore first determines if the statute expressly allows for the item, and whether it appears proper on its face. If so, “the burden is on the objecting party to show them to be unnecessary or unreasonable.” (Ibid.)

Defendant does not contest Plaintiff’s claimed costs. Thus, Plaintiff is entitled to recover her costs in the amount of \$1,547.70.
(Kohen Decl., Ex. 2.)

IV.
CONCLUSION

Based on the foregoing,
Plaintiff’s motion for attorney’s fees and costs is GRANTED

in the reduced total amount of \$50,610.20.

\$50,610.20 is
payable within 60 days of service of this order.

Dated this 30th
day July 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court